Tabrez Rizvi vs State Of U.P. And Another on 5 January, 2023

Author: Rahul Chaturvedi

Bench: Rahul Chaturvedi

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HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 67

Case :- APPLICATION U/S 482 No. - 7443 of 2019

Applicant :- Tabrez Rizvi

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Tarun Agrawal

Counsel for Opposite Party :- G.A.,Prakhar Saran Srivastava

Hon'ble Rahul Chaturvedi,J.
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Heard Sri Tarun Agrawal, learned counsel assisted by Sri Prashant Mishra, counsel for the applicant, Sri Shashwat Gupta holding brief of Sri Prakhar Saran Srivastava, learned counsel for the opposite party No. 2 and well as learned A.G.A. for the State and perused the record.

The present 482 application is being filed for invoking the extraordinary powers of this Court for quashing of the proceedings of a Case No. 53375 of 2018, arising out of Case Crime No. 1171 of 2017 alongwith the impugned summoning order dated 22.10.2018 (State Vs. Tabrez Rizvi), under sections 498-A, 323, 504, 406, 427 IPC and 3/4 D.P. Act, P.S. Chakeri, District Kanpur Nagar.

Vide order dated 01.03.2019 coordinate Bench of this Court has referred the matter to the Allahabad High Court Medication and Conciliation Centre, but unfortunately the things were not materialized at Medication Centre. However, a better sense prevail between the parties and in the proceedings under Domestic Violence Act they have entered into compromise in terms. The said compromise has

been annexed as Annexure SA-1 to the Supplementary Affidavit dated 15.03.2022 whereby it was given to Rs. 10 lacs has been transferred in the account of opposite party No. 2 and now in the year 2017 both the parties have taken divorce and nuptial tie between them got dissolved.

When the matter was taken up the said compromise was sent for verification and the learned Chief Metropolitan Magistrate, Kanpur Nagar vide order dated 01.04.2022 has verified the covenants of compromise and its signatories of the same. Sri Shashwat Gupta, learned counsel for opposite party No. 2 in his reply has nodded in affirmative that he has got no objection of proceeding is being quashed in the light of the compromise.

Learned counsel for the applicant has drawn my attention to the relevant paragraphs of judgment:-

> (i) B.S. JOSHI VS. STATE OF HARYANA AND OTHERS 2003 (4) ACC 675.
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> (ii) GIAN SINGH VS. STATE OF PUNJAB 2012 (10) SCC 303.
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> (iii) DIMPEY GUJRAL AND OTHERS VS. UNION TERRITORY THROUGH ADMINISTRATOR 2013 (11) SCC 697.
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> (iv) NARENDRA SINGH AND OTHERS VS. STATE OF PUNJAB AND OTHERS 2014 (6) SCC 466.
>
> (v) YOGENDRA YADAV AND OTHERS VS. STATE OF JHARKHAND 2014 (9) SCC 653.

Summarizing the ratio of all the above cases the latest judgment pronounced by Hon'ble Apex Court in Criminal Appeal No. 1723/2017 arising out of SLP (Crl.) No. 9549/2016, the Full Bench of the Hon'ble Apex Court in the case of "DPARBATBHAI AAHIR @ PARBATBHAI BHIMSINHBHAI KARMUR AND OTHERS. VS. STATE OF GUJARAT AND ANOTHER", decided on 4th October, 2017, Hon'ble Dr. D.Y. Chandrachud J. delivering the judgment on behalf of the Full Bench has summarized the broad principles with regard to exercise of powers under Section 482 Cr.P.C. in the case of compromise/settlement between the parties. Which emerges from precedent of the subjects as follows:-

> i. "Section 482 preserves the inherent powers of the High Court to prevent an abuse of the process of any court or to secure the ends of justice. The provision does not confer new powers. It only recognizes and preserves powers which inhere in the High Court.
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> ii.The invocation of the jurisdiction of the High Court to quash a First Information Report or a criminal proceeding on the ground that a settlement has been arrived at between the offender and the victim is not the same as the invocation of jurisdiction for the purpose of compounding an offence. While compounding an offence, the power of the court is governed by the provisions of Section 320 of the Code of

Criminal Procedure, 1973. The power to quash under Section 482 is attracted even if the offence is non-compoundable.

iii. In forming an opinion whether a criminal proceeding or complaint should be quashed in exercise of its jurisdiction under Section 482, the High Court must evaluate whether the ends of justice would justify the exercise of the inherent power;

iv. While the inherent power of the High Court has a wide ambit and plenitude it has to be exercised; (i) to secure the ends of justice or (ii) to prevent an abuse of the process of any court;

v. The decision as to whether a complaint or First Information Report should be quashed on the ground that the offender and victim have settled the dispute, revolves ultimately on the facts and circumstances of each case and no exhaustive elaboration of principles can be formulated;

vi. In the exercise of the power under Section 482 and while dealing with a plea that the dispute has been settled, the High Court must have due regard to the nature and gravity of the offence. Heinous and serious offences involving mental depravity or offences such as murder, rape and dacoity cannot appropriately be quashed though the victim or the family of the victim have settled the dispute. Such offences are truly speaking not private in nature but have a serious impact upon society. The decision to continue with the trial in such cases is founded on the overriding element of public interest in punishing persons for serious offences;

vii. As distinguished from serious offences, there may be criminal cases which have an overwhelming or predominant element of a civil dispute. They stand on a distinct footing in so far as the exercise of the inherent power to quash is concerned;

viii. Criminal cases involving offences which arises from commercial, financial, mercantile, partnership or similar transactions with an essentially civil flavour may in appropriate situations fall for quashing where parties have settled the dispute;

ix. In such a case, the High Court may quash the criminal proceeding if in view of the compromise between the disputants, the possibility of a conviction is remote and the continuation of a criminal proceeding would cause oppression and prejudice; and x. There is yet an exception to the principle set out in propositions (viii) and (ix) above. Economic offences involving the financial and economic well-being of the state have implications which lie beyond the domain of a mere dispute between private disputants. The High Court would be justified in declining to quash where the offender is involved in an activity akin to a financial or economic fraud or misdemeanour. The consequences of the act complained of upon the financial or economic system will weigh in the balance."

With the assistance of the aforesaid guidelines, keeping in view the nature and gravity and the severity of the offence which are more particularly in private dispute and differences it is deem proper and meet to the ends of justice. The proceeding of the aforementioned case be quashed.

The present 482 Cr.P.C. application stands allowed. Keeping in view the compromise arrived at between the parties, the impugned proceeding of the present case against the applicants, is hereby quashed.

This order is being passed by this Court after hearing the contesting parties and perusing the short counter affidavit filed by learned counsel for the opposite party no.2. This Court has not verified their credentials. If at all, opposite party no.2 feels that he has been duped or betrayed, then in that event, he may file recall application explaining the reasons for filing the said application.

Let a copy of the order may be transmitted to the concerned lower court within 20 days.

Order Date :- 5.1.2023 Vikram